

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Valentina Concha-Toro	Team: Squad #15	CCRB Case #: 202002891	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Tuesday, 04/14/2020 10:00 AM	Location of Incident: 759 East 214th Street; 47th Precinct stationhouse	Precinct: 47	18 Mo. SOL 10/14/2021	EO SOL 5/4/2022	
Date/Time CV Reported Tue, 04/14/2020 11:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/27/2020 11:14 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Gregory Flores	07931	955923	047 PCT
2. PO Matthew Disilvestre	15513	960466	047 PCT
3. SGT Jackeline Gonzalez	05533	950518	MELD
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Alejandrina Castillo	13913	928632	047 PCT
2. PO Mirsada Hodzic	05927	958701	DB SVD
3. PO Alexis Almanzar	08609	957328	047 PCT
4. PO Rosibel Kery	19293	963090	047 PCT
5. PO Raymond Caban	11453	929806	BX COURT
6. PO David Cooper	21588	959567	047 PCT
7. PO Andres Rivaslorenzo	09351	958006	TD 3
8. PO Dwayne Carter	03894	955789	047 PCT
9. SGT Karina Bravo	01148	946669	POL ACAD

Officer(s)	Allegation	Investigator Recommendation
A.SGT Jackeline Gonzalez	Discourtesy: Sergeant Jackeline Gonzalez spoke discourteously to § 87(2)(b)	
B.PO Gregory Flores	Abuse: Police Officer Gregory Flores threatened to arrest § 87(2)(b)	
C.PO Matthew Disilvestre	Abuse: Police Officer Matthew Disilvestre threatened to arrest § 87(2)(b)	
D.PO Matthew Disilvestre	Discourtesy: Police Officer Matthew Disilvestre spoke discourteously to § 87(2)(b)	
E.PO Gregory Flores	Discourtesy: Police Officer Gregory Flores spoke discourteously to § 87(2)(b)	
F.PO Gregory Flores	Force: Police Officer Gregory Flores used physical force against § 87(2)(b)	

Officer(s)	Allegation	Investigator Recommendation
G.PO Matthew Disilvestre	Force: Police Officer Matthew Disilvestre used physical force against § 87(2)(b)	
H. Officers	Off. Language: Officers made remarks to § 87(2)(b) based upon ethnicity.	
I. Officers	Discourtesy: Officers spoke discourteously to § 87(2)(b)	
J.SGT Jackeline Gonzalez	Abuse: Sergeant Jackeline Gonzalez threatened to arrest § 87(2)(b)	
K.PO Gregory Flores	Abuse: Police Officer Gregory Flores damaged § 87(2)(b) property.	
L.PO Gregory Flores	Abuse: Police Officer Gregory Flores threatened § 87(2)(b) with the use of force.	
M.PO Gregory Flores	Discourtesy: Police Officer Gregory Flores spoke discourteously to § 87(2)(b)	
N.PO Gregory Flores	Abuse: Police Officer Gregory Flores forcibly touched § 87(2)(b)	
O.PO Matthew Disilvestre	Discourtesy: Police Officer Matthew Disilvestre spoke discourteously to § 87(2)(b)	
P.PO Gregory Flores	Abuse: Police Officer Gregory Flores issued an unlawful summons to § 87(2)(b)	
Q.PO Matthew Disilvestre	Discourtesy: Police Officer Matthew Disilvestre acted discourteously toward § 87(2)(b)	
R.PO Matthew Disilvestre	Abuse: Police Officer Matthew Disilvestre threatened to arrest § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 14, 2020, § 87(2)(b) submitted this complaint with IAB. On April 27, 2020, the CCRB received this complaint via IAB log § 87(2)(b)

At approximately 10:00 a.m. on April 14, 2020, at § 87(2)(b) in the Bronx, multiple police officers, including PO Gregory Flores, PO Matthew Di Silvestre and Sgt. Jackeline Gonzalez from the 47th Precinct, responded to § 87(2)(b) 9-1-1 call. § 87(2)(b) mother, § 87(2)(b) exited her apartment building. Sgt. Gonzalez allegedly told § 87(2)(b) “Shut the fuck up” (**Allegation A: Discourtesy**, § 87(2)(g) PO Flores told § 87(2)(b) that if was not quiet, he would be arrested (**Allegation B: Abuse of Authority**, § 87(2)(g) PO Di Silvestre informed § 87(2)(b) that he would be “arrested for discon,” (**Allegation C: Abuse of Authority**, § 87(2)(g) and that § 87(2)(b) “fucking [knew] that,” (**Allegation D: Discourtesy**, § 87(2)(g) PO Flores told § 87(2)(b) he was a “real motherfucker” (**Allegation E: Discourtesy**, § 87(2)(g) PO Flores and PO Di Silvestre placed § 87(2)(b) in handcuffs, and PO Flores instructed § 87(2)(b) to place his hands behind his “fucking” back (**Subsumed in Allegation E**). As PO Flores and PO Di Silvestre walked § 87(2)(b) to their patrol vehicle, they lifted § 87(2)(b) handcuffed arms up, causing him to bend forward and fall to the ground (**Allegations F and G: Force**, § 87(2)(g) Unidentified officers allegedly told § 87(2)(b) “Shut up, you stupid Puerto Rican,” (**Allegations H: Offensive Language**, § 87(2)(g) and **Allegation I: Discourtesy**, § 87(2)(g) § 87(2)(b) told officers of § 87(2)(b) prior injuries, and Sgt. Gonzalez allegedly told § 87(2)(b) “Fuck him,” “Shut the fuck up,” (**Subsumed in Allegation A**) and if § 87(2)(b) did not go inside, she would be arrested (**Allegation J: Abuse of Authority**, § 87(2)(g) At the patrol vehicle, PO Flores cut § 87(2)(b) bag from his shoulder (**Allegation K: Abuse of Authority**, § 87(2)(g) In the patrol vehicle, PO Flores used the word “bullshit” and PO Di Silvestre used the words “fucking moron,” (**Subsumed in Allegations D and E**).

In front of the 47th Precinct stationhouse desk, PO Flores told § 87(2)(b) that if he did not stop moving, PO Flores would “manhandle” § 87(2)(b) and his “face is gonna go on this metal fucking rod,” (**Allegation L: Abuse of Authority**, § 87(2)(g) and **Allegation M: Discourtesy**, § 87(2)(g) PO Flores told § 87(2)(b) “I’m not the one to fuck around with,” (**Subsumed in Allegation M**). PO Flores searched § 87(2)(b) recovered marijuana, and allegedly touched his genitals (**Allegation N: Abuse of Authority**, § 87(2)(g) § 87(2)(b) was walked to the holding cell area. PO Di Silvestre used the word “fucking” twice while speaking to § 87(2)(b) (**Allegation O: Discourtesy**, § 87(2)(g) PO Flores used the word “fuck” (**Subsumed in Allegation M**). PO Flores issued § 87(2)(b) summonses for marijuana and disorderly conduct (**Allegation P: Abuse of Authority**, § 87(2)(g) PO Di Silvestre allegedly threw § 87(2)(b) bag at him (**Allegation Q: Discourtesy**, § 87(2)(g) § 87(2)(b) was walked out of the 47th Precinct stationhouse and PO Di Silvestre told § 87(2)(b) that if he returned, he would be arrested (**Allegation R: Abuse of Authority**, § 87(2)(g)

§ 87(2)(g), § 87(4-b)

The investigation received 23 Body Worn Camera (BWC) videos (Board Reviews 01-10).

Findings and Recommendations

Allegation (A) Discourtesy: Sgt. Jackeline Gonzalez spoke discourteously to § 87(2)(b)

Allegation (H) Offensive Language: Officers made remarks to § 87(2)(b) based upon ethnicity.

Allegation (I) Discourtesy: Officers spoke discourteously to § 87(2)(b)

Allegation (J) Abuse of Authority: Sergeant Jacqueline Gonzalez threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) was on his way to visit § 87(2)(b) at her apartment at § 87(2)(b) in the Bronx. He mistook the building next door at § 87(2)(b) as § 87(2)(b) residence and rang the doorbell to § 87(2)(b). He and the resident of § 87(2)(b) at § 87(2)(b) were then involved in a dispute. § 87(2)(b) called 9-1-1 and stated that § 87(2)(b) had pepper sprayed him and pointed a firearm to his head. PO Flores, PO Di Silvestre, Sgt. Gonzalez and multiple other police officers from the 47th Precinct responded. § 87(2)(b) told the officers what had occurred, and multiple police officers entered § 87(2)(b). § 87(2)(b) was removed from the building and walked to a patrol vehicle. As § 87(2)(b) was walked out by officers, § 87(2)(b) began speaking loudly to her. Officers told § 87(2)(b) multiple times to stop yelling at § 87(2)(b). § 87(2)(b) walked down from her apartment and stood beside the door of her apartment. PO Flores and PO Di Silvestre placed § 87(2)(b) in handcuffs and walk him to a patrol car parked down the street.

§ 87(2)(b) stated (Board Review 11) that § 87(2)(b) was standing on the sidewalk and speaking to the police officers about the incident. § 87(2)(b) told the officers that she was § 87(2)(b) mother, and that § 87(2)(b) was there to see her. Sgt. Gonzalez told § 87(2)(b) “Shut the fuck up,” and that the situation did not concern her. As PO Flores and PO Di Silvestre placed § 87(2)(b) into handcuffs and walked him toward a patrol vehicle, multiple male officers told § 87(2)(b) to “shut up, you stupid Puerto Rican.” § 87(2)(b) was not able to provide any details about who said the statement other than it was made by male officers. As PO Flores and PO Di Silvestre continued to walk with § 87(2)(b), § 87(2)(b) informed them that § 87(2)(b) had a prior injury which resulted in metal plate implanted in his head. Sgt. Gonzalez approached § 87(2)(b) and told her, “That’s not my problem, fuck him.” Sgt. Gonzalez instructed § 87(2)(b) to go inside of the building, to “shut the fuck up,” and told her if she did not go inside she would be arrested.

PO Flores and PO Di Silvestre (Board Reviews 12 and 13) did not recall Sgt. Gonzalez using any profane or discourteous language while speaking with § 87(2)(b) or any other individual. PO Di Silvestre and PO Di Silvestre denied saying “stupid Puerto Rican” during the incident. PO Di Silvestre and PO Flores denied Sgt. Gonzalez, or any other officer, said, “Stupid Puerto Rican,” during the incident.

Sgt. Gonzalez was on extended leave and was not able to provide a statement.

All the BWC videos (Board Review 01), including Sgt. Gonzalez’s BWC video, captured the moments from when § 87(2)(b) exited her apartment building to when all the officers left the scene. At no point did Sgt. Gonzalez or any other officer tell § 87(2)(b) either, “Shut the fuck up,” “Fuck him,” or threaten § 87(2)(b) with arrest. No officer on scene said, “Shut up, you stupid Puerto Rican.”

The investigation reviewed all the BWC videos which captured the entire incident. At no point does any officer, including Sgt. Gonzalez, use any discourteous language while speaking to § 87(2)(b). At no point during the incident does any officer, including Sgt. Gonzalez, instruct § 87(2)(b) to go back into the building or threaten to arrest § 87(2)(b). At no point during the incident does any officer refer to § 87(2)(b) as a “stupid Puerto Rican,” or use any other offensive language based on § 87(2)(b) ethnicity.

§ 87(2)(g)

Allegation (B) Abuse of Authority: Police Officer Gregory Flores threatened to arrest

§ 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer Matthew Di Silvestre threatened to arrest

§ 87(2)(b)

Allegation (P) Abuse of Authority: Police Officer Gregory Flores issued an unlawful summons to § 87(2)(b)

§ 87(2)(b) was on the sidewalk in front of § 87(2)(b) in the Bronx. § 87(2)(b) was removed from the building and walked to a patrol vehicle. As § 87(2)(b) was being walked to the vehicle, § 87(2)(b) began speaking to § 87(2)(b). Multiple police officers stood in front of § 87(2)(b) and informed him that the situation was being handled by the police. PO Flores, PO Di Silvestre and multiple officers spoke to § 87(2)(b) on the sidewalk. § 87(2)(b) was placed in handcuffs, taken to the 47th Precinct stationhouse and ultimately released with two summonses, one for disorderly conduct and another for possession of marijuana.

At the beginning of PO Rivas Lorenzo's BWC video (Board Review 02), § 87(2)(b) explains that he was at the location to visit his mother, § 87(2)(b) who resides in § 87(2)(b) building and the building next door look the same, and § 87(2)(b) rang the doorbell to § 87(2)(b) of building § 87(2)(b) instead. The resident of § 87(2)(b) exited her apartment. § 87(2)(b) explains that § 87(2)(b) then pepper sprayed § 87(2)(b) and pointed a gun to his forehead. § 87(2)(b) provides PO Rosibel Kery a New York State EBT card. At 9:22 minutes into the recording, § 87(2)(b) is walked out of the building and toward a patrol vehicle. § 87(2)(b) begins telling § 87(2)(b) that she should have stayed in her home. Sgt. Gonzalez approaches § 87(2)(b) and tells him to stop speaking to § 87(2)(b). § 87(2)(b) continues speaking to § 87(2)(b). Sgt. Gonzalez steps in front of § 87(2)(b) and tells him that the police have handled the situation. § 87(2)(b) tells Sgt. Gonzalez not to touch him and moves backward. Multiple officers approach § 87(2)(b) including PO Flores and PO Di Silvestre. PO Flores is standing approximately one foot in front of § 87(2)(b) with his arms by his side. § 87(2)(b) tells PO Flores multiple times not to touch him. Multiple officers asked § 87(2)(b) to cooperate. § 87(2)(b) backed away from the officers and asked them to stay six feet away. § 87(2)(b) tells PO Flores that he will report him for not wearing a COVID-19 mask and touching him. PO Flores tells § 87(2)(b) to "shut up." PO Rivas Lorenzo asks § 87(2)(b) for his telephone number and § 87(2)(b) provides it. § 87(2)(b) tells PO Flores he will report him for not wearing a mask. At 10:42 minutes into the video, PO Flores tells § 87(2)(b) "Shut up because you're going to get arrested as well." At 4:56 minutes in Sgt. Gonzalez's BWC video (Board Review 03), § 87(2)(b) asks what he is going to be arrested for. PO Di Silvestre says, "Arrested for discon, and you fucking know that."

§ 87(2)(b) stated (Board Review 14) that he was standing on the sidewalk and multiple police officers approached him. § 87(2)(b) requested the officers remain six feet away from him due to possible COVID-19 exposure. Multiple police officers approached him, and § 87(2)(b) moved backwards to maintain a six-foot distance. § 87(2)(b) repeated to the officers to remain six feet away from him. PO Flores continued to approach § 87(2)(b) and asked questions about the incident. § 87(2)(b) told PO Flores multiple times to stay back. None of the officers issued § 87(2)(b) any instructions. Other than moving back and away from the group of police officers, § 87(2)(b) did not do anything else.

PO Flores stated (Board Review 12) that upon an investigation which yielded no suspicion that § 87(2)(b) had a firearm or weapon in her possession, it was determined that § 87(2)(b) was going to be released. § 87(2)(b) had provided his military veteran card as an ID which did not have a residence on it. PO Flores asked § 87(2)(b) to show any other proof of residence for the location, such as keys, but § 87(2)(b) refused. PO Flores and the other officers asked § 87(2)(b) to leave the location because the officers could not leave with the disputing parties in the same location for safety reasons and believed that § 87(2)(b) made the 9-1-1 call solely to cause trouble for § 87(2)(b). § 87(2)(b) refused to leave. At some point, neighbors gathered in the area to look at what was happening. PO Flores did not recall how many additional people appeared. PO Flores and PO Di Silvestre told § 87(2)(b) that if he did not leave, he would be arrested for disorderly conduct. § 87(2)(b) was guilty of disorderly conduct because he had refused to disperse, he had not cooperated with the request for officers to see proof of residence to ascertain why he was at the location, he had cursed at § 87(2)(b) and he had caused a gathering. § 87(2)(b) could not have been arrested for anything else. At the 47th Precinct stationhouse, a can of pepper spray was recovered from § 87(2)(b) belongings. PO Flores issued § 87(2)(b) a summons for disorderly conduct and another for pepper spray.

PO Di Silvestre stated (Board Review 13) that he remembered § 87(2)(b) on scene but did not recall who what party he was during this incident. PO Di Silvestre did not recall any conversation with § 87(2)(b) about what had occurred during the dispute between himself and § 87(2)(b). PO Di Silvestre did not recall any incident during which § 87(2)(b) was backing away from the officers because of COVID-19. PO Di Silvestre did not recall having a conversation with § 87(2)(b) about his compliance with the investigation. PO Di Silvestre did not recall discussing arrest with § 87(2)(b). PO Di Silvestre identified himself as the officer standing in front of Sgt. Gonzalez's BWC camera, but was not able to identify the voice that said, "Arrested for discon, and you fucking know that." After being shown the videos, PO Di Silvestre did not recall anything that § 87(2)(b) was doing that constituted disorderly conduct, or anything else § 87(2)(b) could have been arrested for.

Two summonses were obtained for § 87(2)(b) (Board Reviews 15 and 34). Summons § 87(2)(b) was for disorderly conduct and noted that § 87(2)(b) "engaged in behavior that caused alarm and made people gather. Causing an unhealthy environment for the people around him." Summons § 87(2)(b) was for possession of marijuana. There was no summons for pepper spray.

The BWC videos were reviewed and at no point was there a crowd or group of individuals observed in the vicinity. The only individual that approached § 87(2)(b) was § 87(2)(b). § 87(2)(b) spoke loudly but did not make any threat toward § 87(2)(b). § 87(2)(b) spoke loudly toward the officers when he did not want them to stand close to him regarding COVID-19, and other than declare that he was going to report the officers, § 87(2)(b) did not make any physical or verbal threats toward the officers.

§ 87(2)(b) was not asked at any point to show any further proof or residence after he provided PO Kery his EBT card. At no point was § 87(2)(b) instructed to disperse. The investigation determined, that while PO Di Silvestre was not able to recall any discussion regarding arresting § 87(2)(b) he identified himself as the police officer standing in front of Sgt. Gonzalez. PO Flores stated that both he and PO Di Silvestre informed § 87(2)(b) that he could be arrested. The investigation weighed PO Di Silvestre's statement against the BWC video and PO Flores' statement, and determined that PO Di Silvestre was the officer who stated, "Arrested for discon, and you fucking know that."

According to NY Penal Law, Section 240.20 (Board Review 16), a person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: engages in fighting or in violence, tumultuous or threatening behavior, or makes unreasonable noise; or congregates with other persons in a public place and refuses to comply with lawful order to disperse.

According to the NYPD Patrol Guide, Section 208-01, (Board Review 17), an officer may arrest an individual without a warrant when they have reasonable cause to believe an offense has been committed in their presence.

The NYPD Administrative Guide, Section 304-10 (Board Review 18), defines an inaccurate statement, either written or verbal statements that a member-of-service knows, or should know, includes incorrect material information. There is no intent to deceive, but rather the member's actions are grossly negligent. Making an inaccurate official statement is prohibited conduct.

§ 87(2)(g)

Furthermore, PO Flores issued § 87(2)(b) a summons for disorderly conduct,

§ 87(2)(g)

Allegation (D) Discourtesy: Police Officer Matthew Di Silvestre spoke discourteously to

§ 87(2)(b)

Allegation (E) Discourtesy: Police Officer Gregory Flores spoke discourteously to § 87(2)(b).

Three BWC videos (Board Review 01) captured the following uses of discourteous language which were made in § 87(2)(b) presence, though § 87(2)(b) did not mention them in his CCRB statements:

§ 87(2)(b) was standing outside of § 87(2)(b) in front of a group of police officers, including PO Flores and PO Di Silvestre. PO Flores instructed § 87(2)(b) to be quiet and told him he could be arrested. At 4:56 minutes into Sgt. Gonzalez's BWC video (Board Review 03), § 87(2)(b) asks what he could be arrested for, and PO Di Silvestre says, "Arrested for discon, and you fucking know that." § 87(2)(b) remains on the sidewalk and continues speaking to PO Flores, and tells PO Flores that not wearing a COVID-19 mask is unprofessional. At 3:04 minutes in PO Flores' BWC video (Board Review 04), § 87(2)(b) says to PO Flores, "I'm a real motherfucker," during their conversation. PO Flores tells § 87(2)(b) "You are a real motherfucker." PO Flores approaches § 87(2)(b) to place him in handcuffs. At 4:33 minutes in PO Flores tells § 87(2)(b) to put his hands behind his back and says, "Put your fucking hands behind your back."

§ 87(2)(b) is seated inside of PO Flores and PO Di Silvestre's patrol vehicle. At 6:52 minutes into PO Flores' BWC video (Board Review 05), PO Flores tells § 87(2)(b) that at the time he was handcuffed, § 87(2)(b) refused to place his hands behind his back. § 87(2)(b) tells PO Flores that his account of what happened was "bullshit," and PO Flores says, "I was there. You can't call bullshit." At 8:42 minutes into PO Di Silvestre's BWC video (Board Review 06), PO Di Silvestre

tells § 87(2)(b) that the officers on scene had their BWCs and says to § 87(2)(b) that there were “ten body-cameras, sir. Don’t worry. Fucking moron.”

Both PO Flores and PO Di Silvestre (Board Review 12 and 13) did not have an independent recollection of using any profane language while at the location of the 9-1-1 call or in their patrol vehicle.

After being shown the BWC videos, PO Flores stated (Board Review 12) that he repeated to § 87(2)(b) the words “motherfucker” and “bullshit” to assure § 87(2)(b) that he was being heard. PO Flores identified himself as the officer who instructed § 87(2)(b) to place his hands behind his back, but due to the audio during the remote interview, was not able to hear the word “fucking.” At the time PO Flores issued § 87(2)(b) instructions to place his hands behind his back, other than using his body weight to unbalance the officers, he was not doing anything else with his body. PO Flores did not have any other reasons to explain why he used discourteous language.

After being shown the BWC videos, PO Di Silvestre identified himself as the police officer standing in front of Sgt. Gonzalez when the statement “arrested for discon, and you fucking know that” was made (Board Review 13). Due to the audio quality during the remote interview, he was not able to identify the voice that made the statement and used the word “fucking.” PO Di Silvestre identified that he was the one who said, “Ten body-cameras, sir,” and, “Moron.” PO Di Silvestre was not able to hear the word “fucking” in the statement. PO Di Silvestre explained that he did not direct the use of the word “moron” toward § 87(2)(b) but he used that word in the “heat of the moment” and he was simply talking out loud. There was no other reason PO Di Silvestre used discourteous language during this incident.

While PO Flores was not able to hear the word “fucking,” while instructing § 87(2)(b) to place his hands behind his back due to difficulties in the remote interview, he did identify his voice as the one instructing § 87(2)(b) to place his hands behind his back. Based on the BWC video, while PO Flores was not able to hear it, the investigation concluded that it was PO Flores’ voice. Similarly, PO Di Silvestre was not able to identify the voice which said, “Arrested for discon, and you fucking know that.” As discussed above in **Allegation C**, the investigation determined that PO Di Silvestre was the officer who said, “Arrested for discon.” The BWC captured PO Di Silvestre moving his mouth as the rest of the phrase, “And you fucking know that,” is stated. The investigation concluded that between PO Flores’ statement, the same voice being heard, and PO Di Silvestre identifying himself as the officer speaking at the time the statement is said, PO Di Silvestre did use the word “fucking.”

According to NYPD Patrol Guide, Section 200-02 (Board Review 19), the NYPD pledges to “value human life, respect the dignity of each individual and render our services with courtesy and respect.” According to DCT Case No. 2015-15012 (Board Review 20), officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers’ use of profanities during stressful street encounters do not constitute misconduct.

Both PO Flores and PO Di Silvestre used discourteous language while speaking directly to, and in the presence of, § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Force: Police Officer Gregory Flores used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Matthew Di Silvestre used physical force against § 87(2)(b)

At approximately 4:27 minutes into PO Flores' BWC video (Board Review 04) PO Flores and PO Di Silvestre approach § 87(2)(b) and PO Flores instructs him to place his hands behind his back. At 14:50 minutes into PO Riva Lorenzo's BWC, § 87(2)(b) moves backward from PO Flores and PO Di Silvestre. PO Flores and PO Di Silvestre turn § 87(2)(b) body so that the front of his torso is facing a parked vehicle. PO Di Silvestre and PO Flores' hands are flat on § 87(2)(b) upper back, and the front of his body pressed against a parked truck. At 4:33 minutes, PO Flores says, "My man, put your hands behind your back. Put your fucking hands behind your back." At 14:06 minutes into PO David Cooper's BWC video (Board Review 08), § 87(2)(b) is placed in handcuffs. Multiple officers state that they are in control of § 87(2)(b) and instruct other officers to back off. At 15:15 minutes into PO Rivas Lorenzo's BWC video (Board Review 02), PO Flores, PO Di Silvestre, and four additional officers make physical contact with § 87(2)(b) while placing him in handcuffs. At 15:35 minutes, PO Flores is standing on § 87(2)(b) right side, and PO Di Silvestre is on § 87(2)(b) left side. PO Flores and PO Di Silvestre each have one arm looped under § 87(2)(b) handcuffed arms and on his head. § 87(2)(b) is bent at the waist and his arms are raised behind him. § 87(2)(b) says, "Officers, you're breaking my hands," multiple times. § 87(2)(b) falls to the floor and officers lift him upright to his feet. PO Flores and PO Di Silvestre continue walking § 87(2)(b) who is rear cuffed, in the same bent position until they arrive at their vehicle.

§ 87(2)(b) stated (Board Review 14) that he was not doing anything other than speaking loudly. § 87(2)(b) was not doing anything with his body. § 87(2)(b) had not issued any verbal or physical threat to anyone, including police officers. None of the officers issued § 87(2)(b) any instructions. After being placed in handcuffs, PO Flores lifted § 87(2)(b) arms and pushed down on his upper body so that § 87(2)(b) chin was almost touching his stomach. Two other officers that § 87(2)(b) was not able to describe lifted § 87(2)(b) rear cuffed hands up from behind him. § 87(2)(b) had difficulty walking with PO Flores and the other two police officers but at no point was he on the ground. § 87(2)(b) arms were swollen as a result, but he did not receive any medical treatment.

§ 87(2)(b) stated (Board Review 11) that § 87(2)(b) had his cellphone up to his ear and was on a call. PO Di Silvestre instructed § 87(2)(b) to end the call multiple times and § 87(2)(b) told PO Di Silvestre that he would not. § 87(2)(b) turned away from PO Di Silvestre and § 87(2)(b) to see multiple additional officers approach them. When she turned back toward § 87(2)(b) § 87(2)(b) was on the ground. Initially § 87(2)(b) stated that she did not know how § 87(2)(b) ended up on the ground, but later stated that PO Di Silvestre had tripped him and as § 87(2)(b) was falling, PO Di Silvestre pushed § 87(2)(b) down on the back of his shoulders. The other officers on scene were on top of § 87(2)(b) but § 87(2)(b) was not able to provide additional details. PO Di Silvestre placed § 87(2)(b) in handcuffs. The officers lifted § 87(2)(b) to his feet and walked him to the patrol vehicle.

PO Flores stated (Board Review 12) that other than his cellphone in his hand and bag across his shoulder, § 87(2)(b) did not have anything else on his person. PO Flores and PO Di Silvestre approached § 87(2)(b) because they were the closest officers to him. PO Flores instructed § 87(2)(b) to put his hands behind his back and § 87(2)(b) did not do so. PO Flores did not recall how many times he told § 87(2)(b) to place his hands behind his back because he and PO Di Silvestre continued instructing § 87(2)(b) to do that through the entire handcuffing process. PO

Flores and PO Di Silvestre grabbed onto § 87(2)(b) arms. § 87(2)(b) pushed and shoved against PO Flores and PO Di Silvestre. PO Flores and PO Di Silvestre placed § 87(2)(b) against the parked vehicle. § 87(2)(b) moved his body against PO Flores and PO Di Silvestre, pushing to unbalance them. PO Flores explained that he and PO Di Silvestre had their hand looped through § 87(2)(b) handcuffed arms and on his head, so that his arms are above his head to have more control over § 87(2)(b) since he had been pushing and shoving officers. PO Flores explained that § 87(2)(b) arms were pushed up to ensure compliance during their walk in the direction of the vehicle. Other than keeping § 87(2)(b) arms in the lifted position, PO Flores did not do anything else and did not do anything to cause § 87(2)(b) fall. PO Flores denied tripping § 87(2)(b) or making contact with his feet.

PO Di Silvestre stated (Board Review 13) that he did not know why PO Flores made the determination to place § 87(2)(b) in handcuffs. PO Di Silvestre approached § 87(2)(b) because he was “backing-up” PO Flores. PO Flores and PO Di Silvestre placed their hands on § 87(2)(b) and § 87(2)(b) tensed his body. PO Di Silvestre did not recall what else § 87(2)(b) was doing with his body. PO Di Silvestre did not recall where on § 87(2)(b) body he touched. PO Flores and PO Di Silvestre pushed § 87(2)(b) with the force necessary to have him pressed against a parked vehicle. Once placed in handcuffs, he and PO Flores walked § 87(2)(b) to their patrol vehicle. Initially, PO Di Silvestre did not recall placing his arm through § 87(2)(b) handcuffed arms and lifting them as § 87(2)(b) head was pushed down. PO Di Silvestre did not recall § 87(2)(b) stating that officers were about to break his hands. PO Di Silvestre denied using any force which would have resulted in § 87(2)(b) hands or arms being broken. PO Di Silvestre did not recall § 87(2)(b) resisting while being walked. The BWC videos were presented to PO Di Silvestre, and he explained that § 87(2)(b) arms were pushed up and the front of his body was pushed downward to “control and restrain” § 87(2)(b). PO Di Silvestre explained that this hold was taught to police officers at the academy, but that this hold does not have a name. PO Di Silvestre did not recall what § 87(2)(b) was doing to necessitate being restrained in this position and did not recall anything to cause § 87(2)(b) fall.

The Resource Recap Log (Board Review 21) noted that a total of 10 police officers responded to the incident.

There was a total of 10 police officers on scene, and the only civilians involved in this incident were § 87(2)(b), § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not interfere while officers were placing handcuffs on § 87(2)(b). § 87(2)(b) was not a suspect of any violent crime. § 87(2)(b) did make any movement other than backing away from the officers, and once placed against the vehicle, § 87(2)(b) did not appear to make any physical movements which hindered the six police officers from placing him in handcuffs. Once § 87(2)(b) was placed in handcuffs and in police custody he walked with PO Flores and PO Di Silvestre and was not visibly resisting the officers’ actions in any way.

According to NYPD Patrol Guide, Sections 221-01 and 221-02 (Board Review 22), force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, whether the subject is actively resisting custody, and the number of subjects in comparison to the number of MOS.

While PO Flores and PO Di Silvestre were not able to account for § 87(2)(b) fall, based on § 87(2)(b) statements of pain in the BWC video and § 87(2)(b) stating that the position made it

difficult to walk. § 87(2)(g) the bent position PO Flores and PO Di Silvestre were holding him in. § 87(2)(g)

Allegation (K) Abuse of Authority: Police Officer Gregory Flores damaged § 87(2)(b) property.

§ 87(2)(b) stated (Board Review 14) that the bag he carried during this incident was a brown leather messenger bag. As officers held § 87(2)(b) against the parked truck, multiple officers were pulling his arms behind him back to place his hands in handcuffs. Prior to being placed in handcuffs, a white male officer with a heavy build wearing a dark blue uniform pulled out a knife and cut through the strap of § 87(2)(b) bag. § 87(2)(b) bag fell to the ground. § 87(2)(b) was then placed in handcuffs.

§ 87(2)(b) stated (Board Review 11) that the strap of § 87(2)(b) bag was cut once he was walked to the patrol vehicle.

At 2:43 minutes in PO Kery's BWC video (Board Review 09), § 87(2)(b) is captured standing outside of a patrol vehicle, in handcuffs, with his bag across his body. PO Kery grabs the bag and touches the strap where it is connected to the bag. PO Flores takes out a small pocketknife, opens it, and cuts the strap of § 87(2)(b) bag.

PO Flores stated (Board Review 12) that he and PO Di Silvestre placed § 87(2)(b) in handcuffs with the assistance of other officers. PO Flores and PO Di Silvestre walked § 87(2)(b) to their patrol vehicle. Outside of the patrol vehicle, § 87(2)(b) remained in handcuffs and PO Flores removed § 87(2)(b) bag. Initially, PO Flores did not recall how he removed § 87(2)(b) bag, but after being shown the BWC videos, PO Flores confirmed he did use a knife to remove § 87(2)(b) bag. The bag was removed from § 87(2)(b) person prior to being placed into the patrol vehicle for safety. Because § 87(2)(b) had been pushing against officers when he was being handcuffed and they wanted to remove § 87(2)(b) from the incident location as quickly as possible, PO Flores believed that cutting the bag instead of trying to find any alternative to removing it was most effective.

It was determined that PO Flores was the officer who cut the strap of § 87(2)(b) bag. § 87(2)(b) bag was removed from around his body after he had been placed in handcuffs and prior to being placed into a patrol vehicle.

According to NYPD Patrol Guide, Section 200-02 (Board Review 19), the NYPD is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect.

According to Onderdonk v. State, 170 Misc. 2d 155 (Board Review 23), officers must give due respect to property and may only damage property if doing so is "reasonably necessary" to effectuate their duties.

§ 87(2)(b) did not attempt to evade arrest or do anything that reasonably indicated that there was an imminent safety concern. § 87(2)(g)

§ 87(2)(g). While PO Flores noted that he cut § 87(2)(b) bag because of a need to expeditiously remove him from the location, § 87(2)(g)

Allegation (L) Abuse of Authority: Police Officer Gregory Flores threatened § 87(2)(b) with the use of force.

At 10:02 minutes into PO Flores' BWC (Board Review 06), PO Flores has placed his BWC on the 47th Precinct front desk. § 87(2)(b) is standing in front of the front desk in handcuffs. PO Di Silvestre and PO Flores begin searching § 87(2)(b) vest pockets. § 87(2)(b) turns to face PO Di Silvestre and tells him he does not have anything on his person. PO Di Silvestre explains to § 87(2)(b) that it is procedure to search him in front of the desk. Sgt. Bravo instructs § 87(2)(b) to face toward the desk. § 87(2)(b) turns slightly and asks why the officers keep searching his pants pockets and to leave him alone. PO Flores informs him that they need to take everything out of § 87(2)(b) pockets. § 87(2)(b) says to PO Flores, "Leave my weed there," and PO Flores removes a plastic bag from one of § 87(2)(b) pockets and places it on the desk. PO Flores tells § 87(2)(b) "My man, are you going to cooperate, or are you going to be manhandled?" § 87(2)(b) takes two steps toward the desk and asks to speak to a supervisor. PO Flores places a hand on § 87(2)(b) chest. § 87(2)(b) tells PO Flores that he has been grabbing him "tight" since the morning. PO Flores asks § 87(2)(b) "Are you gonna relax? Or are you going to be manhandled?" PO Flores tells § 87(2)(b) "If you move again, your face is going to go on this metal fucking rod."

§ 87(2)(b) did not provide any details in his statement of what occurred while he was standing in front of the stationhouse desk (Board Review 14).

PO Flores stated (Board Review 12) that in front of the 47th Precinct stationhouse desk, § 87(2)(b) was moving his body side-to-side to prevent PO Flores and PO Di Silvestre from emptying his pockets. § 87(2)(b) was not doing anything else with his body. Either PO Flores or PO Di Silvestre held § 87(2)(b) firmly as the other continued searching. PO Flores told § 87(2)(b) that he was going to be "manhandled" and that his face was going to end up on a "metal rod" in order to encourage § 87(2)(b) to comply. PO Flores specified he meant that § 87(2)(b) head would be in contact with the metal rod because having § 87(2)(b) bent over, touching the metal rod in front of the desk would be a position in which the officers would have the most control over § 87(2)(b) body. PO Flores explained that his statements only meant that he would "lean" § 87(2)(b) against the metal rod attached to the front desk.

PO Di Silvestre stated (Board Review 13) that during the processing at the desk, § 87(2)(b) was moving his body and tensing up. PO Di Silvestre and PO Flores asked § 87(2)(b) to stop moving, but § 87(2)(b) did not stop moving his body. § 87(2)(b) was shifting his body back and forth, but PO Di Silvestre did not recall whether § 87(2)(b) was doing anything else with his body.

According to NYPD Patrol Guide, Sections 221-01 and 221-02 (Board Review 22), force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or when it is reasonable to place a person in custody or to prevent escape from custody. In determining whether the use of force is reasonable, members of the service should consider the nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, whether the

subject is actively resisting custody, and the number of subjects in comparison to the number of MOS.

§ 87(2)(b) was rear handcuffed and inside of a police station. PO Flores explained that he told § 87(2)(b) he would be “manhandled”, and that § 87(2)(b) face would make contact with the “metal rod” because he wanted § 87(2)(b) to stop moving side-to-side. Other than turning his body and verbalizing that he did not want police officers to search him, § 87(2)(b) was not doing anything else. § 87(2)(b) was not taking any verbal or physical action which posed a danger to himself or any police officer. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (M) Discourtesy: Police Officer Gregory Flores spoke discourteously to § 87(2)(b)

Allegation (O) Discourtesy: Police Officer Matthew Di Silvestre spoke discourteously to § 87(2)(b)

§ 87(2)(b)

PO Flores and PO Di Silvestre walked § 87(2)(b) into the 47th Precinct stationhouse and to the front desk. At 10:42 minutes into PO Flores’ BWC (Board Review 05), § 87(2)(b) tells PO Flores and PO Di Silvestre that he did not want his pockets searched. PO Flores says § 87(2)(b) face will be on a “metal fucking rod” if he continued moving, and that he is not the one to “fuck around with” (as discussed in **Allegation L**). § 87(2)(b) is walked to the holding cell area and PO Flores informs him that prior to being placed in the holding cell he needs to remove his belt, jacket, and shoelaces. § 87(2)(b) tells PO Flores that he will not take anything off. At 19:33 minutes into PO Di Silvestre’s BWC video (Board Review 06), tells § 87(2)(b) that if he only listened to the police officers, the arrest process would “go incredibly fucking simple.” At 1:08 minutes into PO Almanazar’s BWC video (Board Review 07), PO Flores says, “Yeah, fuck it. Get the shackles on too.” At 20:33 minutes into PO Di Silvestre’s BWC video (Board Review 06), PO Di Silvestre, PO Flores, and PO Dwayne Carter are placing leg shackles on § 87(2)(b). PO Di Silvestre tells § 87(2)(b) to place his knee on a chair and § 87(2)(b) says he will do it himself. PO Di Silvestre tells § 87(2)(b) “So put your knee on the fucking chair.”

Both PO Flores and PO Di Silvestre (Board Review 12 and 13) did not have an independent recollection of using any profane language while at the 47th Precinct stationhouse.

PO Flores stated (Board Review 12) that he used the words “fuck” and “fucking” when threatening to place his face on the metal rod because PO Flores believed that the use of strong language at those moments would encourage § 87(2)(b) to comply and so any use of force would not be needed. PO Flores used profane language while issuing § 87(2)(b) instructions to make § 87(2)(b) comply. PO Flores did not have any other reasons to explain why he used discourteous language.

PO Di Silvestre stated (Board Review 13) that he used profane language while speaking to § 87(2)(b) in the stationhouse holding cell area because § 87(2)(b) was not complying. He hoped it would de-escalate the interaction. There was no other reason PO Di Silvestre used discourteous language during this incident.

According to NYPD Patrol Guide, Section 200-02 (Board Review 19), the NYPD pledges to “value human life, respect the dignity of each individual and render our services with courtesy and respect.” According to DCT Case No. 2015-15012 (Board Review 20), officers are to behave professionally and respectfully towards members of the public and avoid the use of discourteous language; however, officers’ use of profanities during stressful street encounters do not constitute misconduct.

While at the 47th Precinct stationhouse, § 87(2)(b) remained in handcuffs until he was released with a summons. § 87(2)(g)

Allegation (N) Abuse of Authority: Police Officer Gregory Flores forcibly touched § 87(2)(b)

§ 87(2)(b) stated (Board Review 14) that at the beginning of the incident the only items he possessed were the bag across his body and a small plastic bag of marijuana in one of his rear pockets. When he was being placed in handcuffs, the front of his body was against a vehicle, and he was not able to see behind him. An officer who § 87(2)(b) could not see patted down his legs, his pants pockets, his upper body, placed his hands inside of § 87(2)(b) pockets. That police officer, on top of § 87(2)(b) clothes, touched his genitals and squeezed them. The police officer squeezed § 87(2)(b) genitals for only a few seconds. The officer removed § 87(2)(b) marijuana from his pocket. § 87(2)(b) was removed to the 47th Precinct stationhouse and walked to the front desk. At the front desk, § 87(2)(b) was searched but § 87(2)(b) did not provide any additional information about the search at the stationhouse.

§ 87(2)(b) stated (Board Review 11) that once § 87(2)(b) was placed in handcuffs, the front of his body was pressed up to the front of a patrol vehicle. The same officer who had cut § 87(2)(b) bag touched § 87(2)(b) legs on top of his clothing. That officer placed his hand in the vicinity of § 87(2)(b) genitals and closed his hand briefly.

At 16:47 minutes into PO Rivas Lorenzo’s BWC video (Board Review 02), PO Flores is on the right side of § 87(2)(b) and PO Di Silvestre is standing on his left side. § 87(2)(b) is facing a patrol vehicle. PO Flores cuts § 87(2)(b) bag. PO Di Silvestre then uses his left hand to touch the back side of § 87(2)(b) pants, and touches the outside of § 87(2)(b) rear pockets. PO Di Silvestre’s hands do not approach the front of § 87(2)(b) groin area and PO Di Silvestre’s hand is not seen touching § 87(2)(b) testicles.

At 10:02 minutes into PO Flores’ BWC (Board Review 05), PO Flores has placed his BWC on the 47th Precinct front desk. § 87(2)(b) is standing in front of the front desk with PO Di Silvestre on his right side. Only the top half of § 87(2)(b) body is visible. PO Di Silvestre touches the right pocket of § 87(2)(b) vest, and § 87(2)(b) turns to face PO Di Silvestre and tells him he does not have anything on his person. PO Di Silvestre explains to § 87(2)(b) that it is procedure to search him in front of the desk. PO Flores stands on § 87(2)(b) left side and begins touching the left pocket of his vest. § 87(2)(b) asks why the officers keep searching his pants pockets and to leave him alone. PO Flores informs him that they need to take everything out of § 87(2)(b) pockets. § 87(2)(b) says to PO Flores, “Leave my weed there,” and PO Flores removes a plastic bag from one of § 87(2)(b) pockets and places it on the desk. At 11:14 minutes into the video, PO Flores bends down and the desk obscures the view of where PO Flores is touching § 87(2)(b)

§ 87(2)(b) says that PO Flores is grabbing his “peanuts” and “butthole.” PO Flores says, “I am grabbing your peanuts.” Sgt. Bravo says that she can see what PO Flores is doing and he is not touching § 87(2)(b) “penis” or “butthole.”

PO Flores states (Board Review 12) that outside of the patrol vehicle, PO Di Silvestre and PO Flores gave § 87(2)(b) a “small pat down.” PO Flores and PO Di Silvestre stood on opposite sides of § 87(2)(b) and touched around § 87(2)(b) waist area and pockets. According to PO Flores, when conducting a frisk an officer will typically place their hands high on someone’s legs and touch around a person’s groin area to make sure there are no hidden weapons. PO Flores denied that he or PO Di Silvestre ever grabbed § 87(2)(b) testicles or genitals. At the 47th Precinct stationhouse front desk, PO Flores and PO Di Silvestre placed their hands inside of § 87(2)(b) pockets, jacket pockets, hoodie, waist area, and removed all contained items. This is done so that when in the cells, a person does not have anything that could harm them or anyone else. PO Flores ran his hands up § 87(2)(b) leg and outlined his groin area with his hands. § 87(2)(b) told PO Flores to not grab his private area and that “[it] was gay.” PO Flores told § 87(2)(b) that he was outlining his genitals, but not grabbing them. After being shown his BWC, PO Flores explained that after § 87(2)(b) said PO Flores was grabbing his “peanuts,” PO Flores confirmed to § 87(2)(b) he was grabbing his “peanuts” so that § 87(2)(b) would feel more comfortable through the experience. PO Flores said this to confirm to § 87(2)(b) that he was outlining § 87(2)(b) genital areas. PO Flores denied grasping § 87(2)(b) testicles and squeezing them.

PO Di Silvestre (Board Review 13) initially did not recall performing any pat down of § 87(2)(b) prior to placing him in the patrol vehicle. At the 47th Precinct stationhouse desk, he and PO Flores searched § 87(2)(b) and removed all the items from his pockets. While being processed at the front desk, officers typically touch the outer clothing area of a person’s waist and legs. He did not recall any if officer touched § 87(2)(b) genitals. After the BWC videos were presented, PO Di Silvestre’s independent recollection was not refreshed. PO Di Silvestre confirmed that he was the officer standing to the left of § 87(2)(b) and touched § 87(2)(b) clothes. PO Di Silvestre denied that he grasped § 87(2)(b) genitals. While in front of the 47th Precinct desk, PO Di Silvestre was focused on § 87(2)(b) and did not observe where PO Flores touched § 87(2)(b) PO Di Silvestre denied that PO Flores touched § 87(2)(b) genitals.

Sgt. Karina Bravo stated (Board Review 24) that she was the desk sergeant when § 87(2)(b) was brought into the stationhouse. Sgt. Bravo did not have an independent recollection of the incident. Sgt. Bravo was shown the BWC and confirmed she was the voice denying PO Flores was touching § 87(2)(b) “peanuts” or “butthole.” Sgt. Bravo’s recollection was not refreshed after viewing the BWC. She did not recall PO Flores or any officer touching § 87(2)(b) testicles or genitals during this incident.

The investigation determined that based on the video evidence, PO Di Silvestre was the only police officer who performed any frisk or search of § 87(2)(b) outside in front of § 87(2)(b). The investigation reviewed all of the BWC videos obtained and at no point is any officer observed making contact with § 87(2)(b) testicles in front of § 87(2)(b). However, BWC video captures § 87(2)(b) making a similar allegation that the PO Flores grabbed his genitals while searching him in front of the 47th Precinct stationhouse.

PO Flores was the only police officer searching § 87(2)(b) at the 47th Precinct stationhouse when § 87(2)(b) stated his “peanuts” and “butthole” were being touched. PO Flores touched the outside of § 87(2)(b) legs and outlined his groin area but denied that he grasped it. Due to the angle of PO Flores’ BWC video, the bottom half of § 87(2)(b) body was not visible. While § 87(2)(b)

verbal statements that his genitals were being touched, § 87(2)(g)

Allegation (Q) Discourtesy: Police Officer Matthew Di Silvestre acted discourteously toward

§ 87(2)(b)

§ 87(2)(b) stated (Board Review 14) that he was walked out of the holding cell area and to the front desk. An officer had § 87(2)(b) bag and threw it at him. § 87(2)(b) caught it.

At the beginning of PO Carter's BWC video (Board Review 10), PO Di Silvestre is at the front door of the stationhouse. § 87(2)(b) stops inside of the stationhouse and there is a chair next to where he is standing. PO Di Silvestre approaches § 87(2)(b) and says, "Here is all of your stuff, okay?" PO Di Silvestre places § 87(2)(b) messenger bag and belongings on the chair.

The video captured the moment when PO Di Silvestre returned all of § 87(2)(b) property. PO Di Silvestre is captured placing the items on the chair and at no point is anything thrown at § 87(2)(b) or elsewhere.

§ 87(2)(g)

Allegation (R) Abuse of Authority: Police Officer Matthew Di Silvestre threatened to arrest

§ 87(2)(b)

§ 87(2)(b) stated (Board Review 14) that he asked Sgt. Gonzalez and other officers who he did not recognize from earlier in the incident why he had been taken to the stationhouse. Sgt. Gonzalez and the other officers asked § 87(2)(b) to leave the stationhouse. § 87(2)(b) did not leave and asked again why he had been taken to the stationhouse. One of the officers told § 87(2)(b) that if he did not leave, he would be arrested. § 87(2)(b) walked out of the stationhouse.

At 00:34 minutes into PO Carter's BWC video (Board Review 10) § 87(2)(b) is standing beside the stationhouse doors and has his phone in his hand. PO Flores, PO Di Silvestre, and Sgt. Bravo are standing in front of § 87(2)(b). He lifts his phone up and points it toward PO Flores. § 87(2)(b) begins stating that there is a pandemic and officers are not wearing masks. PO Flores and Sgt. Bravo tell § 87(2)(b) that he is not allowed to record inside of the stationhouse. Sgt. Bravo and PO Flores tell § 87(2)(b) he needs to go outside, and § 87(2)(b) says he needs to assure he has all of his belongings. PO Flores and PO Di Silvestre walk § 87(2)(b) out of the stationhouse. PO Flores tells § 87(2)(b) he needs to leave. PO Di Silvestre tells § 87(2)(b) if he comes, back he will be arrested.

PO Di Silvestre initially stated (Board Review 13) that he did not recall § 87(2)(b) having done anything that he could have been arrested for at the stationhouse. PO Di Silvestre did not recall telling § 87(2)(b) he would be arrest if he did not leave the stationhouse. PO Di Silvestre explained that if someone does not leave a police precinct stationhouse when asked, they can be arrested for trespassing. After being shown the video, PO Di Silvestre confirmed he threatened § 87(2)(b) with arrest if he returned. PO Di Silvestre explained that § 87(2)(b) could have been arrested for recording inside of the stationhouse and refusing to leave.

According to NYPD Patrol Guide, Section 203-29 (Board Review 25), members of the public are not allowed to photograph and/or record police activity within Department facilities. Members of

the service may order any member of the public who is photographing or recording within Department facilities to stop such activity. If such person refuses to stop, they then should be ordered to leave the premises. If such person refuses to leave the premises, members of the service may take proper enforcement action under the trespass statutes.

According to NY Penal Law, Sections 140.05 and 140.10 (Board Review 26), a person is guilty of Trespass when that person knowingly enters and/or remains unlawfully in or upon premises.

§ 87(2)(b) was not permitted to record inside the stationhouse and after being told he needed to leave, responded that he needed to go through his bag inside the stationhouse. § 87(2)(b) statement acknowledging that he did not leave after being told is corroborated by both the BWC video and officer testimony. Officers are allowed to arrest persons who refuse to leave the premises of a stationhouse under the trespass statutes. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 29).
- § 87(2)(b)
- PO Flores has been a member of service for eight years and has been a subject in one prior CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- PO Di Silvestre has been a member of service for five year and has been a subject in five prior CCRB complaints and five allegations, of which one was substantiated:
 - 201810050 involved substantiated allegations of force against PO Di Silvestre. The NYPD imposed formalized training. § 87(2)(g)
- Sgt. Gonzalez has been a member of service for 10 years and has been a subject in two prior CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- As of March 11, 2022, a FOIL request was sent to the New York City Office of the Comptroller for a Notice of Claim request. On March 18, 2022, the Notice of Claim request was received, and [§ 87(2)(b)] filed a claim for psychological injuries with a redress of 1,000,000.00 dollars.
[§ 87(2)(a)]
[REDACTED]
[REDACTED]

Squad No. 15

Investigator: Valentina Concha-Toro Valentina Concha-Toro March 21, 2022
Signature Print Title & Name Date

Squad Leader: Simon Wang IM Simon Wang 03/21/22
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date